

TENTATIVE RULING

Case: **Merritt v. Hoblit Chrysler Jeep Dodge et al.**
Case No. CV2026-0941

Hearing Date: **June 2, 2026** **Department Thirteen** **9:00 a.m.**

Defendant Hoblit Chrysler Jeep Dodge’s (“defendant”) motion to compel arbitration and stay case is **GRANTED**. (9 U.S.C. § 1, et seq.; Code Civ. Proc., § 1281 et seq.; Snyder Decl., ¶ 2, Exh. A.) The Court finds that the validity and enforceability of the arbitration provision was delegated to an arbitrator for determination. (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 891-892 [“[a]lthough threshold questions of arbitrability are ordinarily for courts to decide in the first instance under the FAA [citation], the ‘[p]arties to an arbitration agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the enforceability of the agreement’”]; *Rent-A-Center, W., Inc. v. Jackson* (2010) 561 U.S. 63, 68-69; *Nielsen Contracting, Inc. v. Applied Underwriters, Inc.* (2018) 22 Cal.App.5th 1096, 1107-1109; see also *Wright v. WellQuest Elk Grove, LLC* (2026) 119 Cal.App.5th 267; Snyder Decl., ¶ 2, Exh. A.)

This matter is stayed pending the completion of arbitration. (9 U.S.C. § 3; Code Civ. Proc., § 1281.4.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Veber v. Traverso**
 Case No. CV2024-2606

Hearing Date: **June 2, 2026** **Department Fourteen** **9:00 a.m.**

Defendant BJ Heating & Air Conditioning’s motion to compel responses to set two of requests for production of documents and set one of requests for admission from plaintiffs Yuri Veber and Mila Veber and motion that certain matters in the requests for admission to plaintiffs Yuri Veber and Mila Veber be deemed admitted is **DENIED AS MOOT**. (Code Civ. Proc., §§ 2031.300, 2033.280.) On May 19, 2026, plaintiffs Yuri Veber and Mila Veber served responses to defendant’s requests for admissions (set one) and requests for production of documents (set two). (Knauss decl., ¶ 3.)

Defendant’s request for sanctions is **DENIED**. (Code Civ. Proc., §§ 2031.300, subd. (c), 2033.280, subd. (c); Bommakanty decl., ¶ 10.) The notice of motion did not include a request for sanctions, “identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought.” (Code Civ. Proc., § 2023.040.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rule of Court 3.1312, or further notice is required.